

		The Court continues the hearing on this Motion to August 31, 2026 at 2:00 p.m. in C27 to be heard concurrently with Defense Counsel's other pending Motion to be relieved. The Court also notes that it appears the second Motion has no proposed order either. The Order to Show Cause re: Monetary Sanctions and Trial Setting Conference set for July 27, 2026 are advanced and continued to August 31, 2026 at 2:00 p.m. in C27. Defense Counsel is ordered to serve notice of the aforementioned ruling and continued hearing dates.
105	2023-01351595 Lenin vs. STC Gardenwalk, LLC	Motion for Continuance of Trial The motion of Defendant, Cross-Complainant, and Cross-Defendant Integrated Asset Management Group, LLC, for an order continuing trial, or in the alternative staying this action, is denied in part and granted in part. The request to continue this matter is denied. The request to stay this action while the related criminal matter is pending is granted. The Court vacates the current trial and MSC dates of October 26, 2026 and September 25, 2026, respectively. The Court sets a status conference for February 22, 2027 at 10:00 a.m. in Department C27. Given the aforementioned stay, the motions to strike set for July 27, 2026 (ROA 247) and September 14, 2026 (ROA 267), respectively, are taken off calendar. Moving party is ordered to give notice.
106	2026-01544923 Comia vs. Eagle Law Corp	Motion to Compel Arbitration Defendants Eagle Law Corp.'s and Donald M. Baker's motion to compel arbitration of Plaintiff's claims is granted. On 9/8/23, Plaintiff and Defendants executed a retainer agreement which included the following clause: EAGLE does not carry errors and omissions insurance. In the event of any dispute between the parties arising out of or relating to this retainer agreement, or to the professional services rendered by this firm, any attorneys or personnel, including but not limited to claims for legal malpractice, any such claims shall be resolved by binding arbitration conducted under the Rules of the American Arbitration Association before one arbitrator. Each side shall bear his or her or its attorney's fees and costs, and one half of the charges of the arbitrator. It is agreed that the arbitration will be conducted in Orange County, California. (Defendants' Ex. A.) Plaintiff does not dispute that she signed the retainer agreement. Contrary to Plaintiff's argument, this agreement encompasses Plaintiff's malpractice claims that are pled in her Complaint. (See <i>Powers v. Dickson, Carlson & Campillo</i> (1997) 54 Cal.App.4th 1102, 1113-1114.)

Plaintiff notes that California Rule of Professional Conduct 1.8.8 prohibits an attorney from making "an agreement prospectively limiting the lawyer's liability to a client for malpractice" unless the client is "independently represented in making the agreement." But the arbitration agreement does not limit Defendant's liability; rather, it designates arbitration as the forum in which to resolve the issue of Defendant's liability. This does not render the arbitration agreement unenforceable.

Plaintiff also argues that because Defendant Barker substituted in as counsel on May 25, 2024, and was never a party to the retainer agreement between Plaintiff and Eagle, he lacks standing to enforce the arbitration clause.

Plaintiff alleges in her Complaint that Barker was an agent of Defendant Eagle Law Corp. (See Complaint, ¶¶ 3, 4.) Therefore, Defendant Barker has standing to enforce the arbitration agreement. (See *Thomas v. Westlake* (2012) 204 Cal.App.4th 605, 614 ("when a plaintiff alleges a defendant acted as an agent of a party to an arbitration agreement, the defendant may enforce the agreement even though the defendant is not a party thereto.").)

Unconscionability

Unconscionability is one ground on which a court may refuse to enforce a contract, including an arbitration agreement. (Civ. Code §1670.5.) Whether a provision is unconscionable is a question of law. (Civ. Code §1670.5(a); *Flores v. Transamerica* (2001) 93 Cal. App. 4th 846, 851.)

To be unenforceable, a contract must be both procedurally and substantively unconscionable, but the elements need not be present in the same degree. The analysis employs a sliding scale: "...the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa." (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal. 4th 83, 114; *Mercuro v. Superior Court* (2002) 96 Cal. App. 4th 167, 174-75.)

Plaintiff argues that the agreement is unconscionable because (1) no advisement regarding independent counsel was provided, (2) the agreement was presented as a non-negotiable intake form, and (3) the clause imposes cost-shifting burdens not present in court proceedings.

Plaintiff's claimed failure to understand what she was agreeing to is not a defense to enforcement. (See *Bolanos v. Khalatian* (1991) 231 CA3d 1586, 1590 ([w]hen a person with the capacity of reading and understanding an instrument signs it, he may not, in the absence of fraud, coercion or excusable neglect, avoid its terms on the ground he failed to read it before signing it.").)

There is no indication that Plaintiff lacks capacity to read and sign an agreement such as this. Defendants state in their reply brief that Plaintiff answered interrogatories stating that she had bachelor's degrees in International Relations, Communications and a Master's in Counseling Psychology.

Additionally, Plaintiff argues that because the agreement is a contract of adhesion, it is procedurally unconscionable. Contracts of adhesion are not per se unconscionable. (See *Powers v. Dickson, Carlson & Campillo* (1997) 54 Cal.App.4th 1102, 1110.)

		Plaintiff also contends that the agreement is substantively unconscionable because it requires each party to "bear...one half of the charges of the arbitrator," and she cannot afford to bear one-half of AAA arbitration fees. (Comia Decl., ¶ 12.) She cites to <i>Armendariz v. Foundation Health Psychcare Services, Inc.</i> (2000) 24 Cal.4th 83, to support her argument that this renders the agreement substantively unconscionable and unenforceable. <i>Armendariz</i> does not apply here as its holding on the payment of fees is limited to employment cases for public policy reasons: "When an employer imposes mandatory arbitration as a condition of employment, the arbitration agreement or arbitration process cannot generally require the employee to bear any <i>type</i> of expense that the employee would not be required to bear if he or she were free to bring the action in court. This rule will ensure that employees bringing FEHA claims will not be deterred by costs." (<i>Armendariz v. Foundation Health Psychcare Services, Inc.</i> (2000) 24 Cal.4th 83, 110–111.) In the underlying case, Plaintiff agreed to a retainer fee of \$5,500.00 and an attorney rate of \$400/hour. (Motion, Ex. A.) Furthermore, Defendant Barker declares in reply that throughout his conversations with Plaintiff in 2024 and 2025, he inquired about Plaintiff's financial condition and status for the purpose of evaluating the amount of any punitive damages award to which Plaintiff may have been subject to in the underlying case. Plaintiff informed him that as of 2024/2025, Plaintiff was earning approximately \$50,000.00 per year via employment, she received \$50,000 per year in child support, she did not pay for childcare, rent or utilities, and all insurance costs for her child was paid for by the child's father. (Baker Decl., ¶ 1.) As it currently stands, Plaintiff has not shown that her ½ of the arbitration fees (which are generally significantly less than the costs of litigating in court) would preclude her access to the arbitration forum. (See <i>Armendariz, supra</i>, 24 Cal.4th at 110–111.) Therefore, because Plaintiff has not shown that the arbitration agreement is both procedurally and substantively unconscionable, the motion is granted. Defendants motion includes a request for sanctions in the motion at the end of the memorandum, pursuant to Code Civ. Proc., § 127.5. There is no § 127.5. This does not exist. Defendants likely mean Code Civ. Proc., § 128.5. Sanctions under § 128.5 are not warranted here; the Court does not find that Plaintiff's Complaint is frivolous or was filed in bad faith. Moreover, Defendants did not provide the 21-day notice as is required. This matter is hereby stayed pursuant to Code Civ. Proc., § 1281.4. The Court further notes that Defendant Julie C. Lim was not a moving party to this motion to compel arbitration. Thus, the action against Defendant Lim is stayed as well. The Demurrer filed by Defendant Lim currently scheduled for August 3, 2026 is vacated. Additionally, the case management conference set fort July 13, 2026 is vacated. The Court sets a hearing re: status of arbitration on July 12, 2027 at 10:00 a.m. in Dept. C27. Moving parties are ordered to give notice.
108	2025-01462176	1. Demurrer to Amended Complaint 2. Case Management Conference